



General Assembly

February Session, 2026

Raised Bill No. 5266

LCO No. 1693



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

AN ACT ADOPTING THE UNIFORM REAL PROPERTY TRANSFER ON DEATH ACT.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. (NEW) (*Effective October 1, 2026*) The provisions of sections
2 1 to 19, inclusive, of this act may be cited as the Uniform Real Property
3 Transfer on Death Act.

4 Sec. 2. (NEW) (*Effective October 1, 2026*) As used in sections 1 to 19,
5 inclusive, of this act:

6 (1) "Beneficiary" means a person that receives property under a
7 transfer on death deed;

8 (2) "Designated beneficiary" means a person designated to receive
9 property in a transfer on death deed;

10 (3) "Joint owner" means an individual who owns property
11 concurrently with one or more other individuals with a right of
12 survivorship. "Joint owner" includes a joint tenant, but does not include
13 a tenant in common;

14 (4) "Person" means an individual, corporation, business trust, estate,
15 trust, partnership, limited liability company, association, joint venture,
16 public corporation, government or governmental subdivision, agency,
17 or instrumentality or any other legal or commercial entity;

18 (5) "Property" means an interest in real property located in this state
19 which is transferable on the death of the owner;

20 (6) "Transfer on death deed" means a deed authorized under sections
21 1 to 19, inclusive, of this act; and

22 (7) "Transferor" means an individual who makes a transfer on death
23 deed.

24 Sec. 3. (NEW) (*Effective October 1, 2026*) The provisions of sections 1
25 to 19, inclusive, of this act apply to a transfer on death deed made before,
26 on, or after October 1, 2026, by a transferor dying on or after October 1,
27 2026.

28 Sec. 4. (NEW) (*Effective October 1, 2026*) The provisions of sections 1
29 to 19, inclusive, of this act do not affect any method of transferring
30 property otherwise permitted under the law of this state.

31 Sec. 5. (NEW) (*Effective October 1, 2026*) An individual may transfer
32 property to one or more beneficiaries effective at the transferor's death
33 by a transfer on death deed.

34 Sec. 6. (NEW) (*Effective October 1, 2026*) A transfer on death deed is
35 revocable even if the deed or another instrument contains a contrary
36 provision.

37 Sec. 7. (NEW) (*Effective October 1, 2026*) A transfer on death deed is
38 nontestamentary.

39 Sec. 8. (NEW) (*Effective October 1, 2026*) The capacity required to make
40 or revoke a transfer on death deed is the same as the capacity required
41 to make a will.

42 Sec. 9. (NEW) (*Effective October 1, 2026*) A transfer on death deed shall:
43 (1) Contain the essential elements and formalities of a properly
44 recordable inter vivos deed, except that the transfer on death deed shall
45 state that the transfer to the designated beneficiary is to occur at the
46 transferor's death; and (2) be recorded before the transferor's death in
47 the public records in the office of the town clerk of the town where the
48 property is located.

49 Sec. 10. (NEW) (*Effective October 1, 2026*) A transfer on death deed
50 shall be effective without: (1) Notice or delivery to, or acceptance by, the
51 designated beneficiary during the transferor's life; or (2) consideration.

52 Sec. 11. (NEW) (*Effective October 1, 2026*) (a) Subject to the provisions
53 of subsection (b) of this section, an instrument is effective to revoke a
54 recorded transfer on death deed, or any part of it, only if the instrument
55 is:

56 (1) One of the following: (A) A transfer on death deed that revokes
57 the deed or part of the deed expressly or by inconsistency; (B) an
58 instrument of revocation that expressly revokes the deed or part of the
59 deed; or (C) an inter vivos deed that expressly revokes the transfer on
60 death deed or part of the deed; and

61 (2) Acknowledged by the transferor after the acknowledgment of the
62 deed being revoked and recorded before the transferor's death in the
63 public records in the office of the town clerk of the town where the deed
64 is recorded.

65 (b) If a transfer on death deed is made by more than one transferor:
66 (1) Revocation by a transferor does not affect the deed as to the interest
67 of another transferor; and (2) a deed of joint owners is revoked only if it
68 is revoked by all of the living joint owners.

69 (c) After a transfer on death deed is recorded, it may not be revoked
70 by a revocatory act on the deed.

71 (d) The provisions of this section do not limit the effect of an inter
72 vivos transfer of the property.

73 Sec. 12. (NEW) (*Effective October 1, 2026*) During a transferor's life, a
74 transfer on death deed does not:

75 (1) Affect an interest or right of the transferor or any other owner,
76 including the right to transfer or encumber the property;

77 (2) Affect an interest or right of a transferee, even if the transferee has
78 actual or constructive notice of the deed;

79 (3) Affect an interest or right of a secured or unsecured creditor or
80 future creditor of the transferor, even if the creditor has actual or
81 constructive notice of the deed;

82 (4) Affect the transferor's or designated beneficiary's eligibility for
83 any form of public assistance;

84 (5) Create a legal or equitable interest in favor of the designated
85 beneficiary; or

86 (6) Subject the property to claims or process of a creditor of the
87 designated beneficiary.

88 Sec. 13. (NEW) (*Effective October 1, 2026*) (a) Except as provided in the
89 transfer on death deed, this section, or in section 45a-257c, 45a-436, 45a-
90 440, 45a-440a, 45a-441 or 45a-447 of the general statutes, on the death of
91 the transferor, the following rules apply to property that is the subject
92 of a transfer on death deed and owned by the transferor at death:

93 (1) Subject to the provisions of subdivision (2) of this subsection, the
94 interest in the property is transferred to the designated beneficiary in
95 accordance with the deed.

96 (2) The interest of a designated beneficiary is contingent on the
97 designated beneficiary surviving the transferor. The interest of a

98 designated beneficiary that fails to survive the transferor lapses.

99 (3) Subject to the provisions of subdivision (4) of this subsection,
100 concurrent interests are transferred to the beneficiaries in equal and
101 undivided shares with no right of survivorship.

102 (4) If the transferor has identified two or more designated
103 beneficiaries to receive concurrent interests in the property, the share of
104 one which lapses or fails for any reason is transferred to the other, or to
105 the others in proportion to the interest of each in the remaining part of
106 the property held concurrently.

107 (b) Subject to the provisions of section 47-10 of the general statutes, a
108 beneficiary takes the property subject to all conveyances, encumbrances,
109 assignments, contracts, mortgages, liens and other interests to which the
110 property is subject at the transferor's death. For purposes of this
111 subsection and section 47-10 of the general statutes, the recording of the
112 transfer on death deed is deemed to have occurred at the transferor's
113 death.

114 (c) If a transferor is a joint owner and is: (1) Survived by one or more
115 other joint owners, the property that is the subject of a transfer on death
116 deed belongs to the surviving joint owner or owners with right of
117 survivorship; or (2) the last surviving joint owner, the transfer on death
118 deed is effective.

119 (d) A transfer on death deed transfers property without covenant or
120 warranty of title even if the deed contains a contrary provision.

121 Sec. 14. (NEW) (*Effective October 1, 2026*) A beneficiary may disclaim
122 all or part of the beneficiary's interest as provided in sections 45a-578 to
123 45a-585, inclusive, of the general statutes.

124 Sec. 15. (NEW) (*Effective October 1, 2026*) (a) To the extent the
125 transferor's probate estate is insufficient to satisfy an allowed claim
126 against the estate or a statutory allowance to a surviving spouse or child,

127 the estate may enforce the liability against property transferred at the
128 transferor's death by a transfer on death deed.

129 (b) If more than one property is transferred by one or more transfer
130 on death deeds, the liability under subsection (a) of this section is
131 apportioned among the properties in proportion to their net values at
132 the transferor's death.

133 (c) A proceeding to enforce the liability under this section shall be
134 commenced not later than eighteen months after the date of the
135 transferor's death.

136 Sec. 16. (NEW) (*Effective October 1, 2026*) The following form may be
137 used to create a transfer on death deed. Sections 1 to 19, inclusive, of this
138 act govern the effect of this or any other instrument used to create a
139 transfer on death deed:

140 (front of form)

141 REVOCABLE TRANSFER ON DEATH DEED

142 NOTICE TO OWNER

143 You should carefully read all information on the other side of this
144 form. You May Want to Consult a Lawyer Before Using This Form.

145 This form must be recorded before your death, or it will not be
146 effective.

T1 IDENTIFYING INFORMATION

T2 Owner or Owners Making This Deed:

T3		
	Printed name	Mailing address

T4		
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- T5 Printed name Mailing address
- Legal description of the property:

- T6 PRIMARY BENEFICIARY
- T7 I designate the following beneficiary if the beneficiary survives
me.
- T8
 Printed name Mailing address, if available
- T9 ALTERNATE BENEFICIARY - Optional
- T10 If my primary beneficiary does not survive me, I designate the
following alternate beneficiary if that beneficiary survives me.
- T11
 Printed name Mailing address, if available
- T12 TRANSFER ON DEATH
- T13 At my death, I transfer my interest in the described property to
the beneficiaries as designated above.
- T14 Before my death, I have the right to revoke this deed.
- T15 SIGNATURE OF OWNER OR OWNERS MAKING THIS DEED
- T16 [(SEAL)]....
 Signature Date
- T17 [(SEAL)]....
 Signature Date

T18 ACKNOWLEDGMENT

T19 (insert acknowledgment for deed here)

147 (back of form)

148 COMMON QUESTIONS ABOUT THE USE OF THIS FORM

149 What does the Transfer on Death (TOD) deed do? When you die,
150 this deed transfers the described property, subject to any liens or
151 mortgages (or other encumbrances) on the property at your death.
152 Probate is not required. The TOD deed has no effect until you die. You
153 can revoke it at any time. You are also free to transfer the property to
154 someone else during your lifetime. If you do not own any interest in the
155 property when you die, this deed will have no effect.

156 How do I make a TOD deed? Complete this form. Have it
157 acknowledged before a notary public or other individual authorized by
158 law to take acknowledgments. Record the form in each town where any
159 part of the property is located. The form has no effect unless it is
160 acknowledged and recorded before your death.

161 Is the "legal description" of the property necessary? Yes.

162 How do I find the "legal description" of the property? This
163 information may be on the deed you received when you became an
164 owner of the property. This information may also be available in the
165 office of the town clerk for the town where the property is located. If
166 you are not absolutely sure, consult a lawyer.

167 Can I change my mind before I record the TOD deed? Yes. If you
168 have not yet recorded the deed and want to change your mind, simply
169 tear up or otherwise destroy the deed.

170 How do I "record" the TOD deed? Take the completed and
171 acknowledged form to the office of the town clerk of the town where the
172 property is located. Follow the instructions given by the town clerk to

173 make the form part of the official property records. If the property is in
174 more than one town, you should record the deed in each town.

175 Can I later revoke the TOD deed if I change my mind? Yes. You
176 can revoke the TOD deed. No one, including the beneficiaries, can
177 prevent you from revoking the deed.

178 How do I revoke the TOD deed after it is recorded? There are
179 three ways to revoke a recorded TOD deed: (1) Complete and
180 acknowledge a revocation form and record it in each town where the
181 property is located. (2) Complete and acknowledge a new TOD deed
182 that disposes of the same property and record it in each town where the
183 property is located. (3) Transfer the property to someone else during
184 your lifetime by a recorded deed that expressly revokes the TOD deed.
185 You may not revoke the TOD deed by will.

186 I am being pressured to complete this form. What should I do?
187 Do not complete this form under pressure. Seek help from a trusted
188 family member, friend, or lawyer.

189 Do I need to tell the beneficiaries about the TOD deed? No, but it
190 is recommended. Secrecy can cause later complications and might make
191 it easier for others to commit fraud.

192 I have other questions about this form. What should I do? This
193 form is designed to fit some but not all situations. If you have other
194 questions, you are encouraged to consult a lawyer.

195 Sec. 17. (NEW) (*Effective October 1, 2026*) The following form may be
196 used to create an instrument of revocation under section 11 of this act.
197 Sections 1 to 19, inclusive, of this act govern the effect of this or any other
198 instrument used to revoke a transfer on death deed.

199 (front of form)

200 REVOCATION OF TRANSFER ON DEATH DEED

T20 NOTICE TO OWNER

T21 This revocation must be recorded before you die or it will not be effective. This revocation is effective only as to the interests in the property of owners who sign this revocation.

T22 IDENTIFYING INFORMATION

T23 Owner or Owners of Property Making This Revocation:

T24		
	Printed name	Mailing address

T25		
	Printed name	Mailing address

T26 Legal description of the property:

• • • •

T27 REVOCATION

T28 I revoke all my previous transfers of this property by transfer on death deed.

T29 SIGNATURE OF OWNER OR OWNERS MAKING THIS
REVOCATION

T30 [(SEAL)]....
Signature Date

[illegible]

T32 ACKNOWLEDGMENT

T33 (insert acknowledgment here)

201 (back of form)

202 COMMON QUESTIONS ABOUT THE USE OF THIS FORM

203 How do I use this form to revoke a Transfer on Death (TOD)
204 deed? Complete this form. Have it acknowledged before a notary public
205 or other individual authorized to take acknowledgments. Record the
206 form in the public records in the office of the town clerk of each town
207 where the property is located. The form must be acknowledged and
208 recorded before your death or it has no effect.

209 How do I find the "legal description" of the property? This
210 information may be on the TOD deed. It may also be available in the
211 office of the town clerk for the town where the property is located. If
212 you are not absolutely sure, consult a lawyer.

213 How do I "record" the form? Take the completed and
214 acknowledged form to the office of the town clerk of the town where the
215 property is located. Follow the instructions given by the town clerk to
216 make the form part of the official property records. If the property is
217 located in more than one town, you should record the form in each of
218 those towns.

219 I am being pressured to complete this form. What should I do?
220 Do not complete this form under pressure. Seek help from a trusted
221 family member, friend, or lawyer.

222 I have other questions about this form. What should I do? This
223 form is designed to fit some but not all situations. If you have other
224 questions, consult a lawyer.

225 Sec. 18. (NEW) (*Effective October 1, 2026*) In applying and construing
226 the provisions of the Uniform Real Property Transfer on Death Act,
227 consideration shall be given to the need to promote uniformity of the
228 law with respect to its subject matter among states that enact said act.

229 Sec. 19. (NEW) (*Effective October 1, 2026*) The provisions of sections 1
230 to 19, inclusive, of this act modify, limit and supersede the Electronic
231 Signatures in Global and National Commerce Act, 15 USC 7001 et seq.,
232 but do not modify, limit or supersede Section 101(c) of said act, 15 USC

233 7001(c), or authorize electronic delivery of any of the notices described
234 in Section 103(b) of said act, 15 USC 7003(b).

This act shall take effect as follows and shall amend the following sections:

Section 1	<i>October 1, 2026</i>	New section
Sec. 2	<i>October 1, 2026</i>	New section
Sec. 3	<i>October 1, 2026</i>	New section
Sec. 4	<i>October 1, 2026</i>	New section
Sec. 5	<i>October 1, 2026</i>	New section
Sec. 6	<i>October 1, 2026</i>	New section
Sec. 7	<i>October 1, 2026</i>	New section
Sec. 8	<i>October 1, 2026</i>	New section
Sec. 9	<i>October 1, 2026</i>	New section
Sec. 10	<i>October 1, 2026</i>	New section
Sec. 11	<i>October 1, 2026</i>	New section
Sec. 12	<i>October 1, 2026</i>	New section
Sec. 13	<i>October 1, 2026</i>	New section
Sec. 14	<i>October 1, 2026</i>	New section
Sec. 15	<i>October 1, 2026</i>	New section
Sec. 16	<i>October 1, 2026</i>	New section
Sec. 17	<i>October 1, 2026</i>	New section
Sec. 18	<i>October 1, 2026</i>	New section
Sec. 19	<i>October 1, 2026</i>	New section

Statement of Purpose:

To adopt the Uniform Real Property Transfer on Death Act.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]